

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Index No.:

----- X
LINCOLN DENNIS and CHARMAINE L. DENNIS,

Plaintiff,

*Plaintiff designates Queens
County as the place of trial.
The basis of venue is place of
the occurrence.*

- against -

**SUMMONS WITH
NOTICE**

THE CITY OF NEW YORK, THE
NEW YORK CITY POLICE DEPARTMENT,
P.O. DEREK SAMBOLIN, P.O. John Doe, AND
P.O. JANE DOE (the names John and Jane Doe
being fictitious, as the true names are presently unknown)

Plaintiff resides at:
2284 Nameok Ave
2nd Floor
Far Rockaway, NY 11691

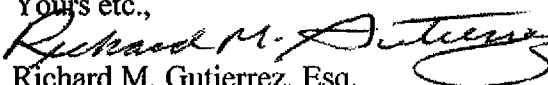
Defendants.

----- X
To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: Forest Hills, New York
July 24, 2019

Defendant(s) address:
The City of New York and the New York
City Police Department
Corporation Counsel
100 Church Street
New York, NY 10007

Yours etc.,

Richard M. Gutierrez, Esq.
Attorney for Plaintiff
Office and Post Office Address
118-35 Queens Blvd., Suite 1500
Forest Hills, NY 11375
(718) 520-0663

P.O. Derek Sambolin
101st Precinct
16-12 Mott Avenue
Far Rockaway, NY, 11691

Notice: The nature of this action is illegal detention, destruction and loss of personal property, false arrest and imprisonment, malicious prosecution, and violation of civil rights pursuant to §42 USC 1983.

The relief sought is monetary damages in an amount excess of the monetary limits of all lower Courts which would otherwise have jurisdiction.

Upon your failure to appear, judgment will be taken against you by default

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
LINCOLN DENNIS and CHARMAINE L. DENNIS,
Plaintiffs,

INDEX NO.:

VERIFIED
COMPLAINT

-against-

THE CITY OF NEW YORK, THE
NEW YORK CITY POLICE DEPARTMENT,
P.O. DEREK SAMBOLIN, P.O. John Doe, AND
P.O. JANE DOE (the names John and Jane Doe
being fictitious, as the true names are presently unknown)

Defendant(s)

-----X

The plaintiff, complaining of the defendants, by his attorney RICHARD M. GUTIERREZ, ESQ., respectfully shows to this Court and alleges:

1. That the plaintiff, LINCOLN DENNIS, a male, is a resident of Queens County and State of New York.
2. That the plaintiff, CHARMAINE L. DENNIS, a female, is a resident of Queens County and State of New York.
3. Upon information and belief, that at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation duly organized and existing under and by virtue of the laws (and Constitution) of the State of New York.
4. The defendant, the NEW YORK CITY POLICE DEPARTMENT, is a local governmental agency, duly formed and operating under and by virtue of the laws and Constitution of the State of New York, and, as such, is responsible for the policies, practices and customs of the NEW YORK CITY POLICE DEPARTMENT as well as the hiring, screening, training, supervising, controlling and disciplining of its police officers and civilian employees.
5. Upon information and belief, that at all times hereinafter mentioned, the defendant, the NEW YORK CITY POLICE DEPARTMENT, its agents, servants and employees operated, maintained and controlled the Police officers thereof.

6. Upon information and belief, at all times hereinafter mentioned, the defendant, P.O. DEREK SAMBOLIN was an employee of the defendant, Police Department.
7. Upon information and belief, at all times hereinafter mentioned, defendant, P.O. DEREK SAMBOLIN was acting within the scope of his employment, with defendant, Police Department.
8. This action arises under the United States Constitution, particularly under provisions of the First, Fourth and Fourteenth Amendments to the Constitution of the United States (42 U.S.C. Section 1983) and arising under the law and statutes of the State of New York.
9. Each and all of acts of the defendants alleged herein were done by the defendants, their agents, servants, and employees, and each of them not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York and the City of New York, and under the authority of their office as police officers of said State and City.
10. That the Notice of the Plaintiff's Claim and Notice of Intention to Sue for Damages for illegal detention, destruction and loss of personal property, false arrest and imprisonment, malicious prosecution, and violation of civil rights, negligence in hiring and retaining, negligence in performance and negligence in training and supervision, the nature of the claim and the date of, the time when, the place where, and the manner in which the claim arose was duly served upon the Municipal Agents of the defendants, NEW YORK CITY POLICE DEPARTMENT and CITY OF NEW YORK, on or about the 9th day of August, 2018.
11. That a 50-H hearing was held on March 25, 2019.
12. That more than thirty (30) days have elapsed since the Notice of Claim and Intention to Sue have been served upon the defendants and the said defendants have neglected or refused to make any adjustment or payment thereof.

AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF LINCOLN DENNIS

13. The plaintiff, LINCOLN DENNIS, repeats, reiterates and re-alleges each every allegation contained in paragraphs marked "1" through "12" with the same force and effect as if more

fully set forth herein.

14. That on or about the 10th day of May, 2019, at or about 6:00 a.m., at 2284 Nameok Ave., Far Rockaway, NY, the defendants, their agents, servants, and employees forcefully entered the residence causing damage to the structure and property contained within.

15. That on or about the 10th day of May, 2019, inside the second-floor apartment at 2284 Nameok Ave., Far Rockaway, NY, the defendants, their agents, servants, and employees wrongfully and falsely arrested, imprisoned, restrained and assaulted plaintiff, LINCOLN DENNIS, without any rights or grounds thereof.

16. That on or about 10th day of May, 2019, the defendants wrongfully and falsely accused the plaintiff, LINCOLN DENNIS, of the crime of criminal possession of a controlled substance in the fourth degree, criminal possession of a controlled substance in the fifth degree, criminal possession of a controlled substance in the seventh degree, criminally using drug paraphernalia in the second degree and unlawful possession of marihuana.

17. That the said detention, arrest, imprisonment and assault, was caused by the defendants', their agents, servants, and employees without any warrant or other legal process and without authority of the law, and without any reasonable cause or belief that the plaintiff, LINCOLN DENNIS, was in fact guilty of such crime and offenses.

18. That on the aforesaid date, time and place, the plaintiff LINCOLN DENNIS, who was acting as a law abiding citizen and was preparing to leave for work when police officers of the Tactical Narcotics Team, including Police Officer Derek Sambolin, of the 101st Precinct located at 16-12 Mott Avenue, Far Rockaway, NY, 11691, entered his residence and arrested him.

19. While the plaintiff, LINCOLN DENNIS, was so engaged, as aforesaid, the defendants, their agents, servants and employees, wrongfully and unlawfully, against the plaintiff's wish, without probable cause and on the false accusations arrested and imprisoned the plaintiff, LINCOLN DENNIS, and with full force of arms, compelled him to go with said police officers into one or more police cars during which time plaintiff's request for medical attention was denied. The plaintiff

LINCOLN DENNIS was then further unlawfully detained and held at Central Booking located in Queens County until he was arraigned before a Criminal Court judge.

20. That the plaintiff, LINCOLN DENNIS, was innocent of said criminal charges and did not contribute in any way to the conduct of the defendants, their agents, servants and employees and was forced by the defendants to submit to the aforesaid arrest and imprisonment thereto entirely against his will.

21. That the defendants, their agents, servants and employees, as aforesaid on the aforementioned date, time and place, intended to confine the plaintiff, LINCOLN DENNIS, in that the plaintiff was conscious of the confinement and it was not otherwise privileged.

22. That by reason of the false arrest and imprisonment and detention, the plaintiff LINCOLN DENNIS, was subjected to great indignities, humiliation and ridicule, in being so detained and charged with various crimes and greatly injured in his credit and circumstances and was then and there prevented and hindered from performing and transacting his necessary affairs and business, and he was caused to suffer much pain in both mind and body due to the lack of blood pressure medication necessary for his health.

23. That by reason of the aforesaid, the plaintiff, LINCOLN DENNIS, has been damaged in an amount in excess of the monetary jurisdiction of all lower courts which would otherwise have jurisdiction and also is entitled to an award of punitive damages.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF LINCOLN DENNIS

24. Plaintiff, LINCOLN DENNIS, repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "23" with the same force and effect as if more fully set forth herein.

25. That the defendants, THE CITY OF NEW YORK (hereinafter CITY) and THE NEW YORK CITY POLICE DEPARTMENT (hereinafter POLICE DEPARTMENT) their agents, servants and employees, negligently, carelessly and recklessly performed their police duties in that they failed to use

such care in the performance of their duties as a trained police officer would have used under similar circumstances in that they carelessly, recklessly and negligently arrested the plaintiff without making proper investigation.

26. That the aforesaid occurrence, to wit, the false arrest and imprisonment, were caused wholly and solely by reason of the negligence of the defendants, their agents, servants and employees without any negligence on the part of the plaintiff.

27. That by reason of the aforesaid, the plaintiff was injured in body and mind when he was arrested and denied his blood pressure medication and had to seek medical attention after his arraignment and release from custody.

28. That by reason of aforesaid, the plaintiff has been damaged in the sum of an amount in excess of the monetary jurisdiction of all lower courts which would otherwise have jurisdiction and also is entitled to an award of punitive damages.

**AS AND FOR A THIRD CAUSE OF ACTION ON
BEHALF OF PLAINTIFF LINCOLN DENNIS**

29. Plaintiff, LINCOLN DENNIS, repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "28" with the same force and effect as if more fully set forth herein.

30. That the defendants, their agents, servants and employees, negligently, carelessly, and recklessly failed to properly train and supervise their employees, in that they failed to train their employees in the proper methods of searching a suspect; in the proper method of detaining a suspect; and to otherwise act as reasonably prudent police officers; failed to give them proper instruction as to their deportment, behavior and conduct as representative of their employers.

31. That the aforesaid occurrence, to wit, the false arrest, illegal imprisonment, malicious prosecution and the resulting injuries to mind therefrom, were cause wholly and solely by reason of the negligence of the defendants, their agents, servants and employees without any negligence on the part of the plaintiff.

32. That by the reason of the aforesaid the plaintiff, LINCOLN DENNIS, was injured in mind is still suffering, and upon information and belief, will continue to suffer mental pain to extricate himself from the indignities and humiliation foisted upon him by the action of the defendant, their agents, servants and employees, and the plaintiff, LINCOLN DENNIS, has been otherwise damaged.

33. That by reason of the aforesaid, the plaintiff LINCOLN DENNIS, had been damaged in an amount in excess of the monetary jurisdiction of all lower courts which would otherwise have jurisdiction and also in entitled to an award of punitive damages.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF LINCOLN DENNIS

34. Plaintiff, LINCOLN DENNIS, repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "33" with the same force and effect as if more fully set forth herein.

35. That on or about the 10th day of May, 2019, at or about 6:00 a.m. inside the second floor apartment at 2284 Nameok Ave., Far Rockaway, NY, P.O. DEREK SAMBOLIN was present as part of his regular and official employment as a police officer for the defendants CITY and THE POLICE DEPARTMENT.

36. As plaintiff was lawfully and properly thereat, the aforementioned police officers, having the power and authority to arrest and imprison the plaintiff, LINCOLN DENNIS, did so threaten these acts upon the said plaintiff, who, after continuing his lawful activity, was detained by P.O. DEREK SAMBOLIN.

37. Immediately thereafter, the defendants falsely arrested and imprisoned the plaintiff, LINCOLN DENNIS, and deprived him of his rights and liberties as set forth in the Constitutions of the United States and of the State of New York, handcuffed him and arrested him without an apparent reason.

38. All of the actions of the defendants, their agents, servants and employees, were committed to arrest, restrain and imprison the plaintiff, LINCOLN DENNIS, without his consent, the plaintiff was at all times conscious of his arrest, did not consent to the false arrest and

imprisonment and it was not otherwise privileged.

39. The arrest and imprisonment were not justified by probable cause or other legal privilege, and the defendants, their agents, servant and employees, acting under the color of statute, ordinances, regulations, customs and usages of the City of New York, County of Queens and the New York City Police Department, and under the authority of their office as police officers for said Police Department, falsely charged the plaintiff LINCOLN DENNIS, with violating the aforesaid section of the Penal Law although the defendants, acting in such capacity knew that such charges were false.

40. That the said prosecution and criminal charges were instituted and procured by the defendant, their agents, servants and employees in this action, unlawfully and maliciously and without any reasonable or probable cause whatsoever therefor. That the commencement and/or continuation of the criminal proceeding by the defendants against the plaintiff, LINCOLN DENNIS, was without probable cause and with actual malice.

41. That the defendants, their agents, servants and employees permitted the use of a policy and/or drafted a policy that was in violation of the constitutional rights of the above named plaintiff, and, in that each and all of the acts of the defendants, their agents, servants and employees alleged herein were done not as individuals but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, the City of New York and the County of New York, and under the authority of their office as police officers for said CITY and POLICE DEPARTMENT.

42. Plaintiff LINCOLN DENNIS, did not commit, either before or at the time he was falsely arrested and imprisoned, and maliciously prosecuted and deprived of his constitutional rights as set forth in the Constitution of the State of New York, any illegal act.

43. As a direct result of the illegal actions and conduct on the part of the defendants, their agents, servants and employees, the plaintiff, LINCOLN DENNIS, was falsely arrested and imprisoned, injured and, maliciously prosecuted.

44. That at all times hereinafter mentioned, the defendants were employed in their respective capacities by the defendant, THE POLICE DEPARTMENT, and were acting under the color of their official capacity and their acts were performed under the color of policies, statutes, ordinances, rules and regulations of THE POLICE DEPARTMENT.

45. That by reason of the aforesaid the false arrest and false imprisonment, and deprivation of their rights and liberties as guaranteed by the aforementioned Constitutions, by the defendants, their agents, servants and employees, acting with the scope of their authority, and without probable or reasonable cause, the plaintiff, LINCOLN DENNIS, suffered pain and suffering.

46. That by reason of the aforesaid, the plaintiff LINCOLN DENNIS, has been damaged in an amount in excess of the monetary jurisdiction of all lower courts which would otherwise have jurisdiction.

**AS FOR THE FIFTH CAUSE OF ACTION ON
BEHALF OF THE PLAINTIFF, LINCOLN DENNIS**

47. Plaintiff, LINCOLN DENNIS, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "46" of the First, Second, Third, and Fourth Causes of Action, with the same force and effect as set forth herein at length.

48. That at all times herein mentioned, plaintiff, LINCOLN DENNIS, is the husband of the plaintiff, CHARMAINE L. DENNIS.

49. That by reason of the foregoing, plaintiff, LINCOLN DENNIS, has been and will continue to be required to expend divers sums of money in the medical care and treatment of his said wife, CHARMAINE L. DENNIS, and said plaintiff has been and will continue to be deprived of the normal services, society and companionship of his said wife, CHARMAINE L. DENNIS.

50. That by reason of the foregoing, plaintiff, LINCOLN DENNIS, has been damaged in a sum in excess of the monetary jurisdiction of all lower courts which would otherwise have jurisdiction with costs, interest and disbursement.

51. That by reason of the foregoing, plaintiff, LINCOLN DENNIS, demands judgment against the defendants, on the Fifth Cause of Action in a sum in excess of the monetary jurisdiction of all lower courts which would otherwise have jurisdiction with costs, interest and disbursement.

AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF CHARMAINE L. DENNIS

52. Plaintiff, CHARMAINE L. DENNIS, repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "51" of the First, Second, Third, Fourth, and Fifth Causes of Action, with the same force and effect as set forth herein at length.

53. That on or about the 10th day of May, 2019, at or about 6:00 a.m. inside the second-floor apartment at 2284 Nameok Ave., Far Rockaway, NY, P.O. DEREK SAMBOLIN was present as part of his regular and official employment as a police officer for the defendants CITY and THE POLICE DEPARTMENT.

54. As plaintiff was lawfully and properly thereat, the aforementioned police officers, having the power and authority to arrest and imprison the plaintiff, CHARMAINE L. DENNIS, did so threaten these acts upon the said plaintiff, who, after continuing her lawful activity, was detained by P.O. DEREK SAMBOLIN.

55. Immediately thereafter, the defendants falsely arrested and imprisoned the plaintiff, CHARMAINE L. DENNIS, and deprived her of her rights and liberties as set forth in the Constitutions of the United States and of the State of New York, handcuffed her and arrested her without an apparent reason.

56. All of the actions of the defendants, their agents, servants and employees, were committed to arrest, restrain and imprison the plaintiff, CHARMAINE L. DENNIS, without her consent, the plaintiff was at all times conscious of her arrest, did not consent to the false arrest and imprisonment and it was not otherwise privileged.

57. The arrest and imprisonment were not justified by probable cause or other legal privilege, and the defendants, their agents, servant and employees, acting under the color of statute, ordinances,

regulations, customs and usages of the City of New York, County of Queens and the New York City Police Department, and under the authority of their office as police officers for said Police Department, falsely charged the plaintiff CHARMAINE L. DENNIS, with violating the aforesaid section of the Penal Law although the defendants, acting in such capacity knew that such charges were false.

58. That the said prosecution and criminal charges were instituted and procured by the defendant, their agents, servants and employees in this action, unlawfully and maliciously and without any reasonable or probable cause whatsoever therefor. That the commencement and/or continuation of the criminal proceeding by the defendants against the plaintiff, CHARMAINE L. DENNIS, was without probable cause and with actual malice.

59. That the defendants, their agents, servants and employees permitted the use of a policy and/or drafted a policy that was in violation of the constitutional rights of the above named plaintiff, and, in that each and all of the acts of the defendants, their agents, servants and employees alleged herein were done not as individuals but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, the City of New York and the County of New York, and under the authority of their office as police officers for said CITY and POLICE DEPARTMENT.

60. Plaintiff CHARMAINE L. DENNIS, did not commit, either before or at the time she was falsely arrested and imprisoned, and maliciously prosecuted and deprived of her constitutional rights as set forth in the Constitution of the State of New York, any illegal act.

61. As a direct result of the illegal actions and conduct on the part of the defendants, their agents, servants and employees, the plaintiff, CHARMAINE L. DENNIS, was falsely arrested and imprisoned, injured and, maliciously prosecuted.

62. That at all times hereinafter mentioned, the defendants were employed in their respective capacities by the defendant, THE POLICE DEPARTMENT, and were acting under the color of their official capacity and their acts were performed under the color of policies, statutes, ordinances, rules and regulations of THE POLICE DEPARTMENT.

63. That by reason of the aforesaid the false arrest and false imprisonment, and deprivation of

their rights and liberties as guaranteed by the aforementioned Constitutions, by the defendants, their agents, servants and employees, acting with the scope of their authority, and without probable or reasonable cause, the plaintiff, CHARMAINE L. DENNIS, suffered pain and suffering.

64. That by reason of the aforesaid, the plaintiff CHARMAINE L. DENNIS, has been damaged in an amount in excess of the monetary jurisdiction of all lower courts which would otherwise have jurisdiction.

**AS FOR THE SEVENTH CAUSE OF ACTION ON
BEHALF OF THE PLAINTIFF, CHARMAINE L. DENNIS**

65. Plaintiff, CHARMAINE L. DENNIS, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "64" of the First, Second, Third, Fourth, Fifth, and Sixth Causes of Action, with the same force and effect as set forth herein at length.

66. That at all times herein mentioned, plaintiff, CHARMAINE L. DENNIS, is the wife of the plaintiff, LINCOLN DENNIS.

67. That by reason of the foregoing, plaintiff, CHARMAINE L. DENNIS, has been and will continue to be required to expend divers sums of money in the medical care and treatment of her said husband, LINCOLN DENNIS, and said plaintiff has been and will continue to be deprived of the normal services, society and companionship of her said husband, LINCOLN DENNIS.

68. That by reason of the foregoing, plaintiff, CHARMAINE L. DENNIS, has been damaged in a sum in excess of the monetary jurisdiction of all lower courts which would otherwise have jurisdiction with costs, interest and disbursement.

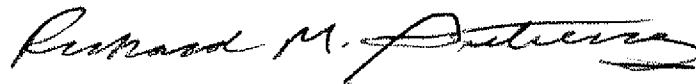
69. That by reason of the foregoing, plaintiff, CHARMAINE L. DENNIS, demands judgment against the defendants, on the Fifth Cause of Action in a sum in excess of the monetary jurisdiction of all lower courts which would otherwise have jurisdiction with costs, interest and disbursement.

WHEREFORE, Plaintiff demands judgment against the defendants has been damaged in an amount in excess of the monetary jurisdiction of all lower courts which would otherwise have jurisdiction

and also is entitled to an award of punitive damages.

Dated: Forest Hills, New York
July 24, 2019

Yours, etc.

A handwritten signature in black ink, appearing to read "Richard M. Gutierrez". The signature is fluid and cursive, with a prominent loop at the end.

RICHARD M. GUTIERREZ, ESQ.
Attorney for plaintiffs
118-35 Queens Blvd., Suite 1500
Forest Hills, New York 11375

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
LINCOLN DENNIS and CHARMAINE L. DENNIS,

Plaintiff(s),

VERIFICATION

- against -

THE CITY OF NEW YORK, THE
NEW YORK CITY POLICE DEPARTMENT,
P.O. DEREK SAMBOLIN, P.O. John Doe, AND
P.O. JANE DOE (the names John and Jane Doe
being fictitious, as the true names are presently unknown)Defendant(s),
-----X

STATE OF NEW YORK }

COUNTY OF Queens } S.S.

I, CHARMAINE L. DENNIS, being duly sworn, deposes and says:

Deponent is the Plaintiff in the within action and has read the foregoing **SUMMONS AND COMPLAINT** and knows the contents thereof.

The content of the aforesaid pleading is true to deponent's own knowledge, except as to matters therein stated to be alleged on information and belief, and to those matters deponent believes them to be true.

Charmaigne Dennis
CHARMAINE L. DENNIS

Sworn to Before me this

16 Th day of July, 2019Richard M. Gutierrez

NOTARY PUBLIC

RICHARD M. GUTIERREZ
Notary Public, State of New York
No. 02GU6137665Qualified in Queens County
Commission Expires December 5, 2021

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
LINCOLN DENNIS and CHARMAINE L. DENNIS,

Plaintiff(s),

VERIFICATION

- against -

THE CITY OF NEW YORK, THE
NEW YORK CITY POLICE DEPARTMENT,
P.O. DEREK SAMBOLIN, P.O. John Doe, AND
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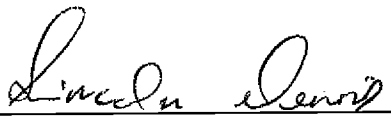
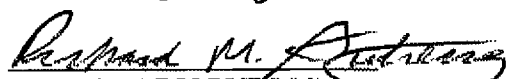
STATE OF NEW YORK }

COUNTY OF Queens } S.S.

I, LINCOLN DENNIS, being duly sworn, deposes and says:

Deponent is the Plaintiff in the within action and has read the foregoing **SUMMONS AND COMPLAINT** and knows the contents thereof.

The content of the aforesaid pleading is true to deponent's own knowledge, except as to matters therein stated to be alleged on information and belief, and to those matters deponent believes them to be true.


LINCOLN DENNISRICHARD M. GUTIERREZ
Notary Public, State of New York
No. 02GU6137665
Qualified in Queens County
Commission Expires December 5, 2021Sworn to Before me this
16TH day of July, 2019
NOTARY PUBLIC

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Index No.:

LINCOLN DENNIS and CHARMINE L. DENNIS

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT,
P.O. DEREK SAMBOLIN, P.O. JOHN DOE, AND P.O. JANE DOE (the names John and Jane doe being
fictitious, as the true names are presently unknown)

Defendant(s)

VERIFIED SUMMONS AND COMPLAINT

RICHARD M. GUTIERREZ, ESQ.

Attorney for Lincoln Dennis & Charmine L. Dennis

118-35 QUEENS BOULEVARD SUITE 1500

FOREST HILLS, NY 11375

Telephone No.: 718-520-0663

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that,
upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: July 24, 2019Signature: 
Print Signer's Name RICHARD M. GUTIERREZ, ESQ.

Service of a copy of the within

is hereby admitted.

Dated:

.....
Attorney(s) for

PLEASE TAKE NOTICE

that the within is a (certified) true copy of a
entered in the office of the clerk of the within named Court on

NOTICE OF
ENTRY

that an Order of which the within is a true copy will be presented for settlement to the
Hon.

NOTICE OF
SETTLEMENT

at

One of the judges of the within named court,

on

, at

Dated:

To:

Attorney(s) for

RICHARD M. GUTIERREZ, ESQ.
118-35 QUEENS BOULEVARD SUITE 1500
FOREST HILLS, NEW YORK 11375